

DIGITAL FORENSICS EXPERT WITNESS & LEGAL SUITE

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Governing Standards: Federal Rules of Evidence (FRE 702, FRE 901), FRCP Rule 26(a)(2)(B)

Classification: PRIVILEGED ATTORNEY WORK PRODUCT // COURT-READY TEMPLATE

PART 1: FORMAL EXPERT WITNESS DECLARATION / AFFIDAVIT

IN THE UNITED STATES DISTRICT COURT / CIRCUIT COURT

FOR THE [INSERT_DISTRICT_OR_COUNTY]

[INSERT_PLAINTIFF_NAME / STATE / PEOPLE],

Plaintiff/Prosecution,

v. Case No.: [INSERT_COURT_CASE_NUMBER]

[INSERT_DEFENDANT_NAME],

Defendant.

_____/

DECLARATION / AFFIDAVIT OF EXPERT WITNESS [INSERT_EXAMINER_NAME]

REGARDING DIGITAL FORENSIC ANALYSIS OF RECOVERED ELECTRONIC EVIDENCE

1. Statement of Qualifications & Competency

1. My name is [INSERT_EXAMINER_NAME]. I am over the age of eighteen (18) years, of sound mind, and fully competent to make this declaration. I have personal knowledge of the facts set forth herein.
2. I currently serve as [INSERT_TITLE] at [INSERT_LAB_OR_COMPANY_NAME].
3. I hold [INSERT_DEGREE_OR_EDUCATION] and active industry certifications in digital forensics and incident response, including [INSERT_CERTIFICATIONS_E.G., CCE, EnCE, GCFA, GASF]. I have conducted digital forensics investigations on over [INSERT_APPROX_CASE_COUNT] cases involving computer and mobile devices.
4. My complete Curriculum Vitae (CV), listing prior expert testimony, publications, and professional affiliations over the preceding four (4) years, is attached hereto as Exhibit A.

2. Evidence Acquisition & Custodial Integrity

5. On [INSERT_INTAKE_DATE], I took physical custody of Evidence Item 01 (Serial Number: [INSERT_SERIAL_NUMBER]).
6. A forensically sterile bit-stream physical image was acquired utilizing a calibrated hardware write-blocker (Model: [INSERT_WRITE_BLOCKER], Serial: [INSERT_BLOCKER_SERIAL]).
7. Cryptographic hashes calculated prior to and immediately following acquisition matched identically:
 - Source Pre-Acquisition SHA-256: [INSERT_SHA256_HASH]
 - Forensic Image Post-Acquisition SHA-256: [INSERT_SHA256_HASH]
8. Evidence integrity was strictly preserved in compliance with ISO/IEC 27037 and Federal Rule of Evidence 901.

3. Summary of Forensic Findings & Expert Opinions

9. Based upon my technical analysis of system registry hives, filesystem journals (\$MFT / \$UsnJrnl), and program execution artifacts (Prefetch, Amcache, Shellbags), it is my professional opinion, held to a reasonable degree of scientific certainty, that:

- A. On [INSERT_DATE] at [INSERT_TIME_UTC], the user account [INSERT_USER_ACCOUNT] was authenticated and active on the subject workstation.
- B. At [INSERT_TIMESTAMP], external storage device [INSERT_USB_MAKE_MODEL] (Serial: [INSERT_USB_SERIAL]) was physically mounted.
- C. Specific confidential documents identified in Exhibit B were accessed and transferred directly to said external media.
- D. Intentional anti-forensic measures were subsequently executed in an attempt to delete security event logs and purge the file system journal.

I declare under penalty of perjury under the laws of the United States that the foregoing is true and correct.

Executed this [INSERT_DAY] day of [INSERT_MONTH], 20[YEAR], at [INSERT_CITY, STATE].

[INSERT_EXAMINER_NAME], [INSERT_CREDENTIALS]

Declarant / Expert Witness

PART 2: EXPERT WITNESS DEPOSITION & TESTIMONY PREPARATION CHECKLIST

Category	Verification Item	Completed / Verified
Tool Validation	Verified all software/hardware used meets Daubert / Frye standard (peer-reviewed, known error rate).	☐ YES
Chain of Custody	Reviewed every physical/digital transfer log for unbroken signatures, badge numbers, and dates.	☐ YES
Hash Verification	Double-checked SHA-256 acquisition vs. verification hashes across all bench notes and exhibits.	☐ YES
Opposing Expert Review	Read opposing expert's rebuttal declaration; documented factual refutations citing raw hex and offsets.	☐ YES
Courtroom Demonstratives	Prepared clear, non-technical visual charts and timeline diagrams for the jury / trier of fact.	☐ YES
Timezone Alignment	Confirmed all timeline exhibits explicitly state whether timestamps are in UTC or local standard time.	☐ YES

PART 3: MASTER SERVICES AGREEMENT (MSA) & EXPERT RETAINER SKELETON

3.1 Fee Schedule & Retainer Structure

- **Standard Forensic Laboratory Examination Rate:** \$[INSERT_HOURLY_RATE] / Hour
- **Deposition / Courtroom Expert Testimony Rate:** \$[INSERT_TESTIMONY_RATE] / Hour (Minimum [INSERT_HOURLY_MINIMUM] hours per day)
- **Travel & Portal-to-Portal Expenses:** Billed at standard IRS mileage rate + actual lodging/per diem costs.

- **Initial Evergreen Retainer Required:** \$[INSERT_INITIAL_RETAINER] (Work commences only upon receipt of retainer funds into trust).

3.2 Impartiality & Scientific Objectivity Clause

“Client and retaining counsel expressly acknowledge that Consultant is retained to conduct an objective, scientific forensic examination in accordance with accepted scientific standards. Consultant does not guarantee any specific outcome or finding and will not alter technical findings or withhold relevant evidence to favor any party.”

3.3 Evidence Retention & Disposal Post-Litigation

“Upon final resolution of the legal matter or termination of this Agreement, Retaining Counsel must provide written instruction for the return or certified destruction of evidentiary media within sixty (60) days. In the absence of written direction, media will be securely stored subject to ongoing monthly archival fees of \$[INSERT_VAULT_FEE].”

AGREED AND ACCEPTED:

RETAINING COUNSEL / CLIENT:

Signature: _____

Printed: [INSERT_CLIENT_NAME]

Title: [INSERT_TITLE]

Firm: [INSERT_LAW_FIRM]

Date: [INSERT_DATE]

FORENSIC CONSULTANT / LAB:

Signature: _____

Printed: [INSERT_EXAMINER_NAME]

Title: [INSERT_EXAMINER_TITLE]

Firm: [INSERT_CONSULTANT_FIRM]

Date: [INSERT_DATE]